

and its Protocol (G 2/88, OJ 1990, 93; see also e.g. T 81/03, T 547/08, T 1832/17 and T 970/17, all with reference to G 2/88, and in this chapter II.E.2.3.1b)).

In T 325/95 the board pointed out that the assumption that the extent of protection referred to in Art. 123(3) EPC 1973 would depend not only on the actual wording of the claims, but also on their validity in view of the prior art, was not supported by the explicit statement in Art. 69 EPC 1973 that "the extent of the protection conferred by a European patent ... shall be determined by the terms of the claims". The appellant's submissions also implied that claims amended in opposition proceedings should always have a counterpart in the set of claims as granted. The board noted that this was not in line with the consistent case law of the EPO either. Attention was drawn for instance to decision G 2/88 (OJ 1990, 93), which ruled that replacement of a granted claim to a compound or composition by a claim directed to a new use of the compound or composition was admissible under Art. 123(3) EPC 1973.

- b) Protection conferred within the meaning of Article 123(3) EPC not determined by subject-matter at issue in national infringement proceedings

As stressed in numerous decisions with reference to G 2/88 (OJ 1990, 93), it is unnecessary when deciding on admissibility of an amendment under Art. 123(3) EPC to consider the national laws of the contracting states relating to infringement and this issue is not relevant (see e.g. T 81/03, T 547/08 and T 970/17).

In T 81/03 the board stressed that the general, abstract concern that the addition of a feature to a claim after grant led to an extended scope of protection because the resulting combination of features might give rise to a different evaluation of **equivalents** in infringement proceedings was not in itself a sufficient reason for not allowing the addition of limiting features under Art. 123(3) EPC 1973.

In T 547/08 the board stated that the appellant's (opponent's) arguments relating to the rights of the patent proprietor to sue for **indirect or contributory infringement** were not relevant to the issue of extension of the scope of protection under Art. 123(3) EPC. With respect to the question of an extension of the scope of protection under Art. 123(3) EPC, it was, rather, appropriate to take into account the fact that the protection conferred by a patent was determined by the terms of the claims, and in particular by the categories of the claims and their technical features, in accordance with Art. 69(1) EPC and its protocol (G 2/88, OJ 1990, 93). See also T 970/17 (which highlighted the difference between the "extent of the protection conferred" by a patent under Art. 69 EPC and the "rights conferred" by a patent under Art. 64 EPC).

The board in T 1832/17 likewise stressed that the scope of protection conferred by a patent within the meaning of Art. 123(3) EPC was not established by reference to the subject-matter that would be at issue in any national infringement proceedings. Art. 69(1) EPC and its Protocol stipulated that the protection conferred was determined by the terms of the claims, and in particular by the categories and technical features of those claims. Ascertaining whether an amendment extended the scope of protection thus meant comparing the granted claims with the amended ones (see also this chapter II.E.2.2).

- c) Generally accepted meaning of a term in the claims versus definition in the description

In T 177/08, with reference to Art. 123(3) EPC, the board referred to Art. 69(1), second sentence, EPC, which provides that the description and the drawings are to be used to interpret the claims. The board said that it had therefore to be decided whether said interpretation of the claims by the content of the description was limited to cases where the claims were in need of interpretation, e.g. because of functional or unclear features, or whether it also applied to the case at issue, where a **well-known and generally accepted meaning of a term** was overthrown and replaced by a new definition given in the description. The board was of the opinion that the second sentence of Art. 69 EPC did not apply to cases where an unambiguous and generally accepted definition of a term figuring in the claims was to be superseded by a different definition found in the description. If it was intended that a term which was in no need of any interpretation be given a new meaning, then the definition for this new meaning had to be put into the claims. Third parties could not be expected to check every single term of the claims for a potentially different meaning that might be hidden somewhere in the description.

In T 1172/08 the board stated that claim 1 as granted and claim 1 of the main request, when read on their own, provided protection for different subject-matter. The patent proprietor agreed that normally such a shift in the extent of protection would not be allowable. It argued, however, that the case at issue was very particular because the claims as granted did not embrace the subject-matter of the only example of the patent specification. The board had no doubts and the parties did not dispute that dendritic cells and monocytes were different cell types characterised by different features. Reading the patent proprietor's interpretation into claim 1 would require the skilled reader to completely ignore the wording of granted claim 1, which per se was not technically meaningless, with the consequence that the wording of claim 1 would merely serve as an empty shell. This was clearly not in the sense of Art. 69 EPC nor in the sense of the protocol on its interpretation. Moreover, the interest of third parties in legal certainty would be completely ignored, if the patent proprietor's interpretation were found to be acceptable.

In T 2284/09 the appellant (patent proprietor) had relied upon decision T 108/91 (OJ 1994, 228), according to which, in the case of inconsistency between the claim and the totality of the disclosure, it was permissible to refer to the description and, pursuant to Art. 69(1) EPC, to rely on the disclosure of the description to amend the claim. T 108/91 was however not applicable in the case at issue, since there was no inconsistency between the claim of the granted patent and the description. Furthermore decision G 1/93 (OJ 1994, 541) ruled that in the case of a non-disclosed limitation being introduced during examination proceedings (as was the case here), it was not permissible to remove it when so doing would extend the scope of protection. In G 1/93 the role of Art. 69(1) EPC was also considered and it was concluded that the description was to be used for assessing in particular sufficiency of disclosure and in determining the scope of protection conferred by the claims. However, there was no finding in G 1/93 that supported the position of the appellant that the description might be used as a repository from which amendments to the claims could be derived even if such amendments would contravene Art. 123(3) EPC.

See also T 195/09, in which the board stated that T 108/91 had been overruled in this regard by G 1/93.

In T 1736/09 the board emphasised that, for the purpose of examination under Art. 123(3) EPC it was irrelevant whether the granted patent met the requirements of Art. 123(2) EPC or Art. 76(1) EPC. See also T 2186/12.

In T 1896/11 the appellant submitted that, taking Art. 69 EPC into account, the description had to be used to interpret the claims; since the protection conferred by claim 5 of the patent as granted necessarily extended to what was stated in the description, claim 5 could be corrected to reflect the description without infringing Art. 123(3) EPC. However, the board held that, in the case at issue, the description could not be used to give a different meaning to a claimed method step which **in itself imparted a clear and credible technical teaching** to the skilled reader. Otherwise third parties could not rely on what the claim actually stated. In order to determine whether the claimed method step in itself imparted a clear, credible technical teaching, it was necessary to examine "whether (a) the step as claimed was in itself meaningful and plausible from a technical point of view, and (b) whether there was, prima facie, any inherent incompatibility with the remaining features of the claim" (see T 1202/07). In the case in hand, the relevant feature was meaningful and plausible from a technical point of view. This approach was confirmed e.g. in T 626/16.

In T 131/15, however, the board highlighted that, in determining whether the requirements of Art. 123(3) EPC 1973 were met, it was not sufficient to look only at the claims in isolation. The approach to be followed was set out in G 2/88 (OJ 1990, 93) with reference to Art. 69(1) EPC 1973 and its Protocol. In the light of these principles, the board came to the following conclusion: Where an expression in a granted claim, taken literally and in isolation, would have the effect of excluding all of the disclosed embodiments from the scope of protection, but where a definition of the expression may be derived from the patent itself which would locate (at least some of) the disclosed embodiments within the ambit of the claim, and provided this definition was **not manifestly unreasonable**, having regard to the normal meaning of the words used in the expression, then in judging compliance with the requirements of Art. 123(3) EPC, the scope of protection should normally be considered to include at least that which would fall within the terms of the claim understood according to this definition.

2.3.2 Cut-off point

The decisions reported below, while likewise looking at the extent of protection, additionally address the question of whether the grant of the patent constitutes a cut-off point for making amendments to the application documents. As summarised in T 1481/14, the grant of a patent is not necessarily an automatic and final cut-off point ruling out any reinsertion of deleted subject-matter whatsoever. At best, the restrictions on further amendments to a patent under R. 80 and 138 EPC and Art. 123(3) EPC can be regarded as having such a cut-off effect.

In T. 1149/97 (OJ 2000, 259) the board decided that, without opposition, issue of a decision to grant a European patent normally constituted a cut-off point for making amendments to the application documents in the European proceedings. If an opposition has been filed, cut-off effects due to the grant of a patent might be seen in the restrictions which R. 57a, R. 87 and Art. 123(3) EPC 1973 impose on further amendment of the patent specification. Although Art. 123(3) EPC 1973 addressed only the claims of the European patent, amendments to the description and the drawings might also extend the protection conferred in accordance with Art. 69(1) EPC 1973. If, in view of Art. 84 and Art. 69 EPC 1973, the application documents were adapted to amended claims before grant, thereby deleting part of the subject-matter originally disclosed in order to avoid inconsistencies in the patent specification, as a rule subject-matter deleted for this reason could not be reinserted either into the patent specification or into the claims as granted without infringing Art. 123(3) EPC 1973. An analogous finding applied to subject-matter retained in the patent specification during such adaptation for reasons of comprehensibility, but indicated as not relating to the claimed invention. See also T. 37/99 and T. 684/02.

In T. 1481/05 the board distinguished the facts of its case from those underlying T. 1149/97. It agreed with T. 1149/97 that the "cut-off effect" finds its basis in Art. 123(3) EPC and that the test to be applied to determine whether this provision was infringed was the following: Is it possible to identify some subject-matter which did not fall under the scope of protection in the granted version of the patent, but would do so if the amendment in question (the reintroduction of the deleted features) was allowed? Applying this test the board was unable to identify abandonment of subject-matter.

Likewise in T. 81/03, the board detailed why it considered that the facts of the case dealt with in T. 1149/97 (OJ 2000, 259) differed from those of the case in point. The board also held that amendments to a European patent could be based on the whole reservoir of features originally disclosed in the corresponding application, provided that Art. 123(3) EPC 1973 was not infringed by such amendments, due account being taken of the provisions of Art. 69(1) EPC 1973.

In T. 241/02 in the board's view neither the fact that the appellant (proprietor) approved the text of the patent in suit nor considerations with respect to legal certainty added to the requirements relating to amendments in R. 57a or Art. 123(2) EPC 1973. The grant of a patent therefore did not necessarily constitute a final and automatic cut-off point ruling out any reinsertion of deleted subject-matter (in the case at issue, reinsertion of portions of the description relating to the process claimed). The opposition division had concluded on the basis of T. 1149/97 (OJ 2000, 259) that reinsertion would not be possible, but without referring to any specific parts or making any connection between parts to be reinstated and any concrete conclusion as to how the product claims would be extended in contravention of Art. 123(3) EPC 1973. The board decided that, by contrast with the situation in T. 1149/97, in the case in point the appellant had deleted too much of the description, overlooking the relevance of parts of it to these remaining claims. According to the board, T. 1149/97 did not lay down a strict rule. It required that an examination of a request for reinsertion be carried out with a view to establishing whether or not Art. 123(3) EPC 1973, on the facts of each case, was indeed infringed.

In T.975/03 the appellants (opponents) referred to decisions T.420/86 and T.61/85 in support of their argument, regarding the reintroduction of the feature of claim 1 deleted before the grant of the patent, that the appellant (patent proprietor) could not reinsert into the patent a feature it had deleted during the examination procedure, as such deletion was equivalent to abandonment. In the board's view, however, no legal grounds for the latter assertion were indicated in T.420/86 (or in T.61/85). This decision had also preceded the ruling in G 7/93 (see point 2.1 of the Reasons). The board held that the grant of a patent did not necessarily establish an automatic and final cut-off point which ruled out any reintroduction of deleted subject-matter. The amendment in the case at issue was therefore allowable, provided that it did not breach the requirements of R.57a and Art. 123(2) and (3) EPC 1973. In the case at issue these requirements were met. See also T.1481/14.

2.3.3 General claim interpretation

Decision T.190/99 gives guidance on how to interpret a claim as granted for the purpose of Art. 123(3) EPC. The skilled person, when considering a claim, should rule out interpretations which are illogical or which do not make technical sense. He should try, with synthetical propensity, i.e. building up rather than tearing down, to arrive at an interpretation of the claim which is technically sensible and takes into account the whole disclosure of the patent (Art. 69 EPC). The patent must be construed by a mind willing to understand, not a mind desirous of misunderstanding (this frequently cited decision was more recently referred to in the context of Art. 123(3) EPC, for example, in T.1084/10, T.1009/12, T.916/15).

In T.287/11 the question to be answered was whether the claims of the main request covered any compositions or methods which were not covered by the claims as granted. The board considered decision T.999/10, which had been cited by the appellant, where it was stated that in view of the sequential ("cascade") formulation of the claim, there was no doubt as to the "intention" of the patent proprietor that no block copolymers other than the specific SIS-type might be present in the adhesive. The board in the case at issue held that the scope of protection should **not be interpreted**, however, **in the light of the intention of the drafter of a claim**, since this was a subjective criterion, but rather on the basis of the meaning generally accepted by the person skilled in the art to the technical features defined in said claim.

In T.1825/13 the board raised the question of whether the words "PQCA of a printing press" should be understood to be directed to the PQCA (printing quality checking apparatus) as such in the sense of "PQCA for a printing press ..." ("partial interpretation"), or to a printing press comprising the PQCA ("holistic interpretation"). In its decision, the board considered that some characterising features were not relevant for the PQCA as such, and this raised doubts as to whether the partial interpretation was appropriate. In order to clarify the scope of the claim, the board reverted to the description, which indicated that the "invention relates to a printing press having a PQCA ...". In addition, the board noted that during the examining proceedings the holistic interpretation had prevailed. Therefore, in view of the text of the patent as granted and in order to be coherent with the grant and opposition proceedings, the board adopted the holistic interpretation. In the